

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MARIE SMITH

Date Filed
Index No.:

SUMMONS

Plaintiff,

-against-

JURY DEMAND
Plaintiff designates
New York County
as the place of trial
based on CPLR 504

CITY OF NEW YORK, NAN HAO CHEN , Individually,
TYRICE MILLER, Individually, and WENDY GARCIA,
Individually

Defendants'
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York
August 1, 2024

_____/s/_____
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Law Office of John A. Scola, PLLC
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DEFENDANTS ADDRESS:

CITY OF NEW YORK
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MARIE SMITH

Index No.:

VERIFIED
COMPLAINT

Plaintiff,

-against-

JURY DEMAND

CITY OF NEW YORK, NAN HAO CHEN , Individually,
TYRICE MILLER, Individually, and WENDY GARCIA,
Individually

Defendants'

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The Plaintiff, MARIE SMITH, by her attorneys the LAW OFFICE OF JOHN A. SCOLA, PLLC., as and for her complaint against defendants' CITY OF NEW YORK, NAN HAO CHEN, Individually, TYRICE MILLER, Individually, and WENDY GARCIA, Individually, , (collectively referred to as "Defendants") for race discrimination, hostile work environment pursuant to New York State Executive § 296, and New York City Local Law §187 et al. and was retaliated against in violation of New York Civil Service Law §75.

INTRODUCTION

This is a civil rights action on behalf of Plaintiff MARIE SMITH (hereinafter referred to as "Plaintiff") to vindicate her rights related to the race discrimination, and hostile work environment created by the Defendants CITY OF NEW YORK, (hereinafter referred to as "CITY"), NAN HAO CHEN, (hereinafter referred to as "CHEN"), Individually, TYRICE MILLER, (hereinafter referred to as "MILLER"), Individually, and WENDY GARCIA, (hereinafter referred to as "GARCIA"), Individually. More specifically, Plaintiff seeks compensatory, emotional distress and punitive damages against all Defendants as well as attorney's fees related to the deprivation of Plaintiff's rights secured by New York City Local

Law §8-107 et al. Plaintiff was denied employment on the basis of race, forced to work in a hostile work environment, and retaliated against for lawfully protected complaints of said discrimination.

PROCEDURAL REQUIREMENTS

1. Plaintiff has filed suit with this Court within the applicable statute of limitations period.

PLAINTIFF

2. Plaintiff MARIE SMITH is a female citizen of the United States of America, over twenty-one (21) years of age, resident of Putnam County.
3. Plaintiff is a Black woman.

DEFENDANTS'

4. Defendant the CITY OF NEW YORK is a municipal corporation organized and existing under and by virtue of the law of the State of New York.
5. Defendant NAN HAO CHEN is a Lieutenant in the New York City Police Department and is employed by the Defendant CITY OF NEW YORK.
6. Defendant CHEN is one rank higher than Plaintiff and has supervisory control over her.
7. Defendant CHEN is an Asian man.
8. Defendant TYRICE MILLER is a Deputy Inspector in the New York City Police Department and is employed by the Defendant CITY OF NEW YORK.
9. Defendant MILLER is the Commanding Officer of the OEEEO office and is three (3) ranks higher than Plaintiff. Defendant MILLER had supervisory control over Plaintiff.
10. Defendant MILLER is a Black man.
11. Defendant WENDY GARCIA is a Deputy Commissioner of Equity and Inclusion in the New York City Police Department and is employed by the Defendant CITY OF NEW

YORK.

12. Defendant GARCIA is more than five (5) ranks higher than Plaintiff.
13. Defendant GARCIA is a Hispanic woman.
14. Defendant MILLER reports to Defendant GARCIA.
15. Defendant CITY, and their agency the NYPD, are equal opportunity employers which prohibit discriminatory employment actions against, and treatment of, their employees and applicants for employment based on actual or perceived race, color, national origin, alienage or citizenship status, religion or creed, gender (including “gender identity” -- which refers to a person’s actual or perceived sex, and includes self-image, appearance, behavior or expression, whether or not different from that traditionally associated with the legal sex assigned to the person at birth), disability, age (18 and over), military status, prior record of arrest or conviction, marital status, partnership status, genetic information or predisposing genetic characteristic, sexual orientation, status as a victim or witness of domestic violence, sex offenses or stalking, and unemployment status.

FACTUAL ALLEGATIONS

16. Plaintiff joined the NYPD as a police officer on August 1, 1998.
17. At all times herein, Plaintiff excelled in her role with the Police Department
18. Plaintiff worked in the 73rd and 75th Precincts, and Patrol Borough Brooklyn North as a police officer before being transferred to Police Commissioner’s Office.
19. Plaintiff started working in Police Commissioner’s Office in 2006.
20. In 2007, Plaintiff was promoted to detective.
21. Plaintiff went on to work for Police Commissioners Raymond Kelly, William Bratton and James O’Neil.

22. Plaintiff was promoted to Detective 2nd Grade in 2013.
23. Plaintiff remained in Police Commissioner's Office , where she excelled, until 2016.
24. In 2016, Plaintiff was promoted to Sergeant.
25. At all times herein, Plaintiff excelled in her role as a sergeant.
26. After being promoted to Sergeant, Plaintiff was assigned to the Criminal Justice Bureau where she worked in the Court Monitoring Unit.
27. In 2019, Plaintiff applied for and was accepted into the NYPD's Office of Equal Employment Opportunity (hereinafter "OEEO").
28. Shortly after joining the unit, Plaintiff was sent to Cornell University for her certification in discrimination and retaliation investigations.
29. Plaintiff successfully completed the program in 2020 and was assigned to the OEEO office.
30. After joining the OEEO office, Plaintiff excelled in her role as an investigator.
31. For the years 2019, 2020, 2021 and 2022 Plaintiff earned stellar performance evaluations.
32. Plaintiff excelled in her position with OEEO.
33. In March 2023, Plaintiff is rewarded based on her stellar work performance with the discretionary promotion to Sergeant Supervisor of Detective Squad.
34. In January 2023, Defendant MILLER takes over as the Commanding Officer of OEEO.
35. Around this time, a OEEO colleague had left the office which required his cases to be reassigned.
36. One of these cases was reassigned to Plaintiff.
37. After the reassignment, Plaintiff was tasked by Defendant CHEN with investigating the allegation which had been sitting dormant for six (6) months by Defendant CHEN.
38. The case was a gender discrimination case which Plaintiff reviewed.

39. Plaintiff listened to the audio recordings, conducted a respondent interview and then determined the respondent was exonerated.
40. During the case review on this file, Plaintiff informed the Executive Staff that there was no discrimination in this case.
41. Plaintiff was instructed to unsubstantiate rather than exonerate as that way the case could be reopened at a later date for statistical purposes.
42. In July 2023, Plaintiff was assigned another case which she unfounded.
43. This was Muslim discrimination case.
44. The complaining witness had an extensive disciplinary background.
45. Plaintiff unfounded the case which was subsequently reviewed by Defendant GARCIA and confirmed Plaintiff's finding.
46. Initially the team leader agrees with, accepts and approves the finding on July 14, 2023.
47. On July 26, 2023, the team leader suddenly rejects Plaintiffs finding and request that the finding be changed to unsubstantiated.
48. Based on the orders, Plaintiff changes the finding.
49. Plaintiff subsequently presents the case and new finding to Defendant GARCIA.
50. Defendant GARCIA proceeds to direct the team to find the case as unfounded as Plaintiff initially intended as this was the proper designation.
51. Following the meeting Defendants CHEN and MILLER begin to target Plaintiff.
52. On August 10, 2023, Defendant CHEN threatens Plaintiff that she must change the outcome of her investigations to the way they want, or she is going to have problems.
53. This exchanges is witnessed by a co-worker.
54. Plaintiff immediately notifies her union about the threats by Defendant CHEN.

55. Plaintiff is advised to begin documenting her interactions with Defendant CHEN and the Executive Staff moving forward.
56. In 2023, Plaintiff began having problems with Defendant CHEN.
57. Defendant CHEN had a history of treating Black employees differently than non-Black employees.
58. In September 2023, Plaintiff was assigned an OEEO case to investigate.
59. Plaintiff investigated the case which was a pregnancy, and gender discrimination case and determined that the case warranted an unsubstantiated finding.
60. Plaintiff investigated the case and determined the allegation to be unfounded.
61. Plaintiff's finding was approved by Defendant CHEN.
62. On December 29, 2023, Plaintiff submits a scratch copy of the case recommendation from September.
63. In December 2023, Defendant MILLER gives Plaintiff a "highly recommend" recommendation letter for stellar work performance by Defendant MILLER.
64. Plaintiff returns from sick leave on January 16, 2024.
65. Around that time, and unknown to Plaintiff, her September case is submitted to the NYPD's Department Advocate's and Police Commissioner's Office under another investigator name.
66. Unknown to Plaintiff at the time but while she was out on sick leave in January 2024, Defendants CHEN and MILLER changed the finding of one of Plaintiff's complaints without her knowledge.
67. Specifically, Defendants CHEN and MILLER altered Plaintiff's finding to substantiated but left her signature on the document as if Plaintiff had reached that finding.

68. Further, after the finding was altered, the case was reassigned to a junior investigator to receive credit for Plaintiff's work.
69. This constitutes both the crime of fraud and NYPD official misconduct for case tampering.
70. On January 23, 2024 Plaintiff is contacted by the NYPD Department Advocates Office about the case that was changed without her knowledge.
71. Specifically Plaintiff is contacted by the Department Advocate's Office on January 23, 2024 by Advocate Sophie Kravitz
72. Plaintiff explains on the phone that she is unsure what case Kravitz is referring to as she did not substantiate or submit any case to the Department Advocates or Police Commissioner's office.
73. Plaintiff also informed Kravitz that the case she was referencing was reassigned to a new investigator.
74. Plaintiff is then shown the finding which had been altered without her knowledge.
75. Plaintiff informed Kravitz that the document had been altered to change her finding without her knowledge and that she disagrees with the finding.
76. Plaintiff objects to the altered finding.
77. Following the phone conversation, it becomes known throughout OEEO that Plaintiff objected to the fraudulent finding on her case.
78. This objection constitutes protected activity under Civil Service Law 75-b as Plaintiff was objecting to the falsification of a record which is a crime.
79. Immediately following this conversation with the advocates office, Plaintiff is retaliated against for complaining to the Advocates office about the fraudulent finding in her case.
80. Defendants CHEN and MILLER immediately become aware of Plaintiff's objections

81. The fraudulent filing, specifically, the altering of a signed document constituted fraud.
82. Plaintiff objected to the fraud.
83. Following notice of Plaintiff's objections to the Defendants fraudulent conduct, Defendants CHEN and MILLER immediately attempt to punish Plaintiff.
84. Defendants CHEN and MILLER state that Plaintiff's objections to the fraudulent findings constitutes "conduct prejudicial to the good order of the department" and attempts to issue Plaintiff formal discipline.
85. This is clear retaliation under Civil Service law 75b as Plaintiff objected to the fraudulent altering of her investigative work and then leaving Plaintiff's signature as if she had reached that conclusion.
86. Plaintiff objects to the discipline as it is clearly retaliatory.
87. This unwarranted discipline would dissuade an employee from engaging in protected activity.
88. Defendant CHEN then approaches the OEEO Integrity Control Officer on multiple occasions and asks her to target and retaliate against Plaintiff.
89. Following Defendant CHEN finding out about Plaintiff's email exchange with attorney Kravitz he brings Plaintiff in for a meeting with Executive Director Jordan Farnham and Lieutenant Soriano and Defendant MILLER regarding her objecting to the altered finding in her case without her permission.
90. Plaintiff is confronted in the meeting which is extremely adversarial.
91. Plaintiff immediately stops the meeting and requests that her union delegate be present.
92. When Plaintiff's union rep arrives for the meeting, the meeting is abruptly cancelled.
93. Defendant CHEN tells Plaintiff and her union representative that the meeting is no longer

needed and that he will document it later.

94. The cancelling of the meeting highlights the nefarious intentions of the Defendants herein who had no legitimate reason for their hostile actions taken towards Plaintiff. .
95. After the call with the Advocates Office, Plaintiff is informed by her co-workers that all of her cases were being removed and that she will be removed from the OEEO Unit.
96. Plaintiff is shocked by the rumors as she has performed at a stellar level throughout her time in the OEEO office.
97. The only thing that changed since Plaintiff's highly recommendation in December 2023, is she objected to her supervisors fraudulently altering her findings in cases she was investigating.
98. Plaintiff is told by Defendant CHEN that he needs to speak with her.
99. When Plaintiff asks what the meeting is about, Defendant CHEN refuses to tell her.
100. Hours after Plaintiff heard the rumors, Plaintiff is pulled into a meeting with Defendants CHEN, MILLER, and Jordan Farnhan, the civilian Executive Director of OEEO, and told, for the first time, that her work performance is subpar and that she will be removed from the unit.
101. Defendants CHEN and MILLER further state, for the first time, that they are unhappy with her work performance on the gender/pregnancy case specifically.
102. Plaintiff is told that her work performance is subpar and, at the direction of Defendant GARCIA, deemed unfit to conduct case investigations in the OEEO office.
103. At the meeting Defendant CHEN tells Plaintiff she is unfit to work in OEEO.
104. Defendant CHEN tells Plaintiff that although he, and the OEEO Executive Staff, approved her finding in the September gender discrimination case, her questions in that case were

biased and misleading and that Plaintiff was unable to perform her job in a satisfactory manner.

105. There is no basis for these comments as the Defendants had approved the completed case in its entirety months earlier.

106. Less than a year earlier, Plaintiff received a discretionary promotion to Sergeant Special Assignment based on her stellar work performance.

107. Less than a month earlier, Plaintiff received the highest level of recommendation by Defendant MILLER who is now insistent that Plaintiff cannot perform her job..

108. The altering of Plaintiff's investigation without telling her and passing that along to the NYPD's Department Advocates Office constitutes fraud.

109. Plaintiff objected to this illegality when she refused to go along with the changed finding.

110. Once Plaintiff objected to the Defendants illegal actions, her engagement in protected activity became well known to the Defendants.

111. The Defendants retaliated against Plaintiff as a cut her overtime and ostracize her from the rest of the Unit.

112. The retaliation will worsen from this point until the date of the filing.

113. This is not the first time that Defendant CHEN has removed or attempted to remove black OEEEO investigators.

114. While the Defendants actions were clearly retaliatory, Black investigators have a troubling history within the OEEEO office.

115. At this point, it is pretty clear to Plaintiff that she is being discriminated and retaliated against.

116. Plaintiff is singled out in a way that non-Black employees who did not complaint about

crimes are not.

117. On January 26, 2024, Plaintiff meets with the Department Advocates Office where she again tells them that she unfounded this case and the finding was altered behind her back and without her knowledge.
118. Plaintiff again objects to the fraud.
119. Plaintiff is again retaliated against for her objections to the Defendants crimes.
120. This was done in retaliation for Plaintiff's complaint of the Defendants fraudulent actions.
121. The Defendants retaliatory actions are unlawful retaliation.
122. When Plaintiff returns to work, her overtime is cut.
123. Within three weeks of Plaintiff's objection to the falsification of her investigation, Plaintiff is stripped of all of her cases and overtime.
124. These actions were taken purposefully to dissuade others from engaging in protected activity and in retaliation for Plaintiff' complaints about the falsification of Plaintiff's investigation.
125. Plaintiff is moved to the intake desk and is stripped of her investigator role.
126. There is no legitimate reason to demote Plaintiff.
127. Defendant CHEN continues his patterned behavior after Plaintiff's retaliatory reassignment to the intake position by taking Plaintiff's work and assigning credit to other investigator for her personal intake entries.
128. Plaintiff's work is allegedly subpar but is good enough to be reassigned without change by other investigators.
129. In reality Plaintiff's work product is stellar and the Defendants are discriminating and retaliating against Plaintiff.

130. Defendant CHEN has had a long history of discriminating against Black employees in the OEEEO office.
131. Defendant CHEN would treat Black employees differently than non-Black employees.
132. Defendant CHEN would regularly talk poorly about Black subordinates and attack their character in a way that he did not non-Black employees.
133. Specifically, Plaintiff witnessed Defendant CHEN treat Black members of service like Carlos Roberts, Sergeant Tanje Scott, Sergeant Richard Beary, Sergeant Eddy Joseph and PAA Shahad Hossain differently than non-Black employees.
134. Specifically, Defendant CHEN would target Roberts based on his race.
135. Defendant CHEN would pass over Black and dark skinned people for promotion due to his biases towards Black employees.
136. These employees include Plaintiff, Fuhad Hussain, Lieutenant Carlos Roberts and Sergeant Richard Beary.
137. This treatment of Black employees forced Sergeant Richard Beary to request to be removed from the Unit after he was repeatedly mistreated and spoken to in disrespectful and vulgar language by Defendant CHEN.
138. As a result of the mistreatment by Defendant CHEN due to race, Sergeant Richard Beary is forced to leave the OEEEO unit.
139. Sergeant Richard Beary excelled in his role with the OEEEO office but was ultimately forced out based on Defendant CHEN's false claims that the work was not up to par.
140. These are the same false allegations that were made against Plaintiff.
141. Further the office of OEEEO has a history of discriminating against people of darker skin color.

142. Throughout her time with the Unit, Plaintiff has only ever seen Defendant CHEN recommend that Black employees be removed from the Unit
143. This list includes but is not limited to Plaintiff, Lieutenant Roberts, and Sergeant Beary.
144. Additionally, Defendant CHEN also recommended that Black Investigator Eddy Joseph also be removed from the Unit.
145. During her time in the OEEU unit, Plaintiff never witnessed Defendant CHEN recommend an employee who is not Black, be removed from the OEEU office.
146. As a result of Plaintiff's demotion to receptionist, Plaintiff is working out of title, had her job duties significantly changed, is denied overtime and is denied any upward mobility within the office.
147. The actions taken against Plaintiff would dissuade others from engaging in protected activity.
148. At all times herein, Plaintiff is treated less well due to her race which causes her to work in a hostile work environment.
149. Plaintiff, prior to the retaliatory and discriminatory demotion, was able to earn as much as 40 hours of overtime a month in cash and unlimited amount of overtime in time.
150. Overtime in time means that the officer can work overtime and then elect to have the time accrued to be used as vacation time at a later date.
151. When Plaintiff is demoted to the receptionist position, she is stripped of her overtime.
152. Plaintiff is the only employee in OEEU who has her overtime limited.
153. Plaintiff, as a result of the discrimination and retaliation loses between \$5,000 and \$7,500 a month in lost overtime.
154. Non-Black Employees and employees who did not object to the illegal altering of Plaintiff's

investigations continue to be allowed to reach the maximum of overtime each month.

155. Plaintiff is denied overtime due to her race and in retaliation for her protected complaints.

156. From January 2023 onward, Plaintiff is denied overtime due to her race.

157. Non-Black OEEO employees are allowed to earn overtime.

158. This list includes all predominately Hispanic Investigators assigned to the unit in both limited and restricted duty status.

159. Each of these sergeants are similarly situated to Plaintiff in every material way except their race.

160. The aforementioned sergeants earn thousands of dollars more in overtime each year compared to Plaintiff due to her race.

161. These non-Black comparators will earn tens of thousands of dollars more than Plaintiff due to having access to overtime.

162. On February 22, 2024, Plaintiff is issued an extremely low performance evaluation by Defendant CHEN.

163. Plaintiff is given a 3.5 out of 5.0 for the year 2023.

164. Plaintiff's evaluation score is not reflective of her work performance.

165. In 2022, Plaintiff received a perfect 5.0 out of 5.0.

166. Since 2014, Plaintiff has not received less than a 4.0 out of 5.0 evaluation.

167. Now Plaintiff, less than two (2) months from her objecting to the illegal actions of the Defendants, was issued her lowest evaluation score in more than a decade.

168. Plaintiff further received this lower evaluation due to her race.

169. Non-Black OEEO employees received a higher performance evaluations due to their race.

170. The performance evaluation is the single most important employment document with the

NYPD and is the main document reviewed when an officer applies for specialized units or transfers within the many units of the NYPD.

171. When an officer is given a poor evaluation, they are essentially handcuffed to remain in their current command as the negative evaluation makes it extremely difficult for them to transfer or be promoted.
172. Plaintiff has been denied upward mobility within the NYPD as a result of her negative evaluations.
173. As a result of these negative evaluations, Plaintiff is precluded from applying for and obtaining more lucrative specialized units within the NYPD which afford officers greater opportunities for overtime and provides them with greater opportunities to be promoted to Detective.
174. These assignments often need a minimum of 4.0 out of 5.0 to be eligible for consideration for these positions.
175. Plaintiff is purposefully given the negative evaluation to negatively affect her career opportunities within the NYPD.
176. Plaintiff is purposefully given the negative evaluation to discredit her.
177. Plaintiff immediately appeals this negative evaluation.
178. Following Plaintiff's appeal of her performance evaluation, Defendant MILLER meets with Plaintiff to adjudicate the appeal.
179. During the meeting Defendant MILLER fails to follow Administrative Guide 331-05 which governs appeals to evaluations.
180. Defendant MILLER adds multiple supervisors to meeting improperly to embarrass Plaintiff and not following the proper format.

181. Further an Appeal Board member (Deputy Inspector Jamiel Altaheri) was abruptly removed from the appeal hearing without notice to Plaintiff or her union.
182. Inspector Altaheri had previously overturned an improper evaluation by Defendant CHEN for an employee he was previously targeting for a lack of documents deficiencies in work performance.
183. This same lack of documentation is present for Plaintiff's case which is why Inspector Altaheri was asked to leave.
184. Defendant CHEN does not issue performance evaluations based on merit.
185. Plaintiff was given a negative evaluation due to her race and in retaliation for objecting to the Defendants crimes.
186. When the appeal meeting had concluded with Defendant MILLER, he elects not change the performance evaluation.
187. On April 3, 2024 Plaintiff again appealed the finding.
188. For this appeal, Plaintiff submitted documentation to the Police Commissioners, Department of Equity and Inclusion as per the Administrative Guide.
189. This complaint, that Plaintiff's evaluation was improper due to discrimination, retaliation and bias constitutes protected activity under New York State and City law.
190. Plaintiff specifically mentions that the Defendants were biased which led to her lower score.
191. This appeal constitutes Plaintiff engaging in protected activity as Plaintiff is saying that she received the lower score due to the discrimination of Defendants CHEN and MILLER.
192. Plaintiff was approved for vacation from April 13, 2024 until April 16, 2024.

193. On April 15, 2024, Defendant CHEN sends Plaintiff an email accusing her of non-compliance in regard to intake.
194. Defendant CHEN, in order to punish Plaintiff, forged documents submitted by Plaintiff.
195. On April 17, 2024, Plaintiff has a meeting with Defendants MILLER and CHEN.
196. Sergeant Ajello is present for the meeting as a witness.
197. Despite Defendants MILLER and CHEN bringing in a witness to the meeting, Plaintiff is denied a union representative for the meeting.
198. At the meeting, when Plaintiff states that she will be appealing her evaluation to the Police Commissioner's Office, Plaintiff is informed that she is being demoted back to patrol.
199. This demotion was done in retaliation for Plaintiff's objection to the discrimination and retaliation she was forced to endure.
200. Plaintiff is further told that she will be demoted to the front desk receptionist position, or she will be formally removed from the OEEO office.
201. Plaintiff has no choice but to accept the demotion.
202. As a result of her demotion, Plaintiff is removed from all of her cases, is stripped of her access to her investigations, interviews, audio and all other documents without her knowledge.
203. The actions of the Defendants herein were taken within weeks of Plaintiff objecting to the Defendants altering her investigatory finding fraudulently altering her investigation findings.
204. Plaintiff is informed in the meeting with Defendant MILLER that she will ultimately be demoted back to patrol.

205. Plaintiff is told she is being demoted back to patrol within two (2) weeks of Plaintiff notifying the Police Commissioners Office she received a negative evaluation due to the discriminatory biases of the Defendants herein.
206. This transfer was done in retaliation of Plaintiff's engagement in protected activity.
207. The temporal proximity to Plaintiff's demotion to her protected activity is evidence of retaliation.
208. Plaintiff is shocked by the news as she has worked more than twenty-five (25) years with the NYPD and was now being demoted back to patrol.
209. Plaintiff asks Defendant MILLER what she had done wrong.
210. Defendant MILLER tells Plaintiff she is being demoted due to past incidents.
211. Defendant MILLER does not specify what these incidents are.
212. Upon information and belief, the past incidents are pretextual for the discriminatory motives which led to Plaintiff's demotion.
213. Plaintiff is informed by her co-workers that she will transferred to the 1st Precinct.
214. Plaintiff is not told this directly by the Defendants herein who were gossiping about Plaintiff behind her back to the team.
215. Plaintiff lives in Putnam County will have to drive 114 miles total to her new assignment.
216. This change was done purposefully as a form of "highway therapy," a common retaliation technique used by the NYPD.
217. Plaintiff is unaware that she is being administratively transferred which is a disciplinary transfer ordered by Defendant MILLER.

218. Plaintiff had committed no documented wrongdoing prior to her objecting to the Defendants altering her investigation finding.
219. Plaintiff is provided with no documents or the reason for the transfer.
220. The transfer of Plaintiff is purely retaliatory and discriminatory as the OEEO Unit is lacking manpower at the time Plaintiff is notified that she is to be administratively transferred.
221. Plaintiff is dismissed without further instruction.
222. Following this meeting Plaintiff returns to work and waits for her transfer to come down.
223. Within five (5) days of this meeting, three (3) black uniformed personnel are transferred out of OEEO.
224. These officers were Lieutenant Raquel Wilson, Sergeant Eddy Joseph and Plaintiff.
225. As a result of the transfers, Plaintiff is the only permanent Black investigator in OEEO.
226. These discriminatory transfers were approved by Defendant GARCIA.
227. On April 19, 2024, Plaintiff is formally demoted to a civilian position within OEEO.
228. The position given to Plaintiff is normally held by college interns, police cadet or aide.
229. Plaintiff is working in this position in the rank of Sergeant Special Assignment.
230. Plaintiff is placed on display for constant ridicule and embarrassment within the Unit.
231. To Plaintiff's knowledge on Black and/or dark skinned personnel have ever been transferred out of the OEEO unit.
232. On April 21, 2024, Plaintiff filed a complaint of discrimination and retaliation against the Defendants herein.
233. Since Plaintiff works in OEEO she was forced to file several discrimination complaints with Group 1 of the Internal Affairs Bureau.

234. Plaintiff also files a federal discrimination charge with the United States of America Equal Employment Opportunity Commission (EEOC).
235. Plaintiff's complaints become immediately known and Plaintiff is retaliated against as a result.
236. Around this time and in retaliation for her complaints of discrimination Defendant CHEN instructs the other members of OEEO to stop working with Plaintiff.
237. Around this time and in retaliation for her complaints of discrimination Defendants MILLER and GARCIA instructs the other members of OEEO to stop interacting and speaking with Plaintiff.
238. Shortly after Plaintiff's complaint, it becomes known that Plaintiff filed the complaint.
239. On April 22, 2024, Plaintiff is approached by the newly assigned Integrity Control Officer and told that without her knowledge her appeal for her evaluation would be conducted the following day.
240. The appeal is denied.
241. On April 23, 2024, Plaintiff is approached by a person at her new desk assignment by Defendants MILLER and CHEN who request a private meeting with Plaintiff.
242. Plaintiff does not feel safe and requests a delegate.
243. Defendant MILLER proceeds to verbally assault Plaintiff in the OEEO Complaint waiting area.
244. Defendant MILLER uses abusive and profane language to attack Plaintiff.
245. This verbal comes within days of and in retaliation for Plaintiff's OEEO complaint.
246. The verbal assault is so intense that Defendant CHEN has to physically remove Defendant MILLER from the waiting room.

247. Defendant MILLER is further subdued by multiple supervisors to avoid the incident becoming violent.
248. Following the incident, Plaintiff is approached by multiple OEEO employees who express concern for Plaintiff's personal safety and work predicament.
249. Plaintiff is told by her co-workers that they do not believe the Unit is safe for her to remain.
250. Plaintiff is shaken by the altercation with Defendant MILLER.
251. Following the incident, Plaintiff has the appeal meeting for her evaluation.
252. The procedures used by the Defendants for Plaintiff's appeal are contrary to those set forth in the NYPD's Administrative Guide.
253. Defendant GARCIA refuses to meet with Plaintiff for her secondary appeal and sends a representative on her behalf.
254. In the meeting, Plaintiff tells Defendant GARCIA's representative what just happened and that she does not feel that she can receive an unbiased and fair evaluation.
255. Plaintiff's evaluation appeal is ultimately denied.
256. After the meeting with Defendant GARCIA's representative, despite being a mandated reporter and the Deputy Chief of the NYPD's Equity and Inclusion, bot Defendant GARCIA nor her representative fail to report Plaintiff's discrimination, retaliation or misconduct complaints.
257. The April 23, 2024 incident was not the first time that Defendant MILLER was physically threatening to Plaintiff.
258. Defendant MILLER physically intimidated Plaintiff when she requested a delegate previously and when she appealed her evaluation.

259. No actions were taken to correct Defendant MILLER's misconduct.
260. On April 23, 2024, Plaintiff participates in a secondary appeal of her evaluation which is overseen by Defendant GARCIA.
261. At the meeting Plaintiff requested that her evaluation be changed to a 4.0.
262. This request was denied.
263. At the end of the meeting, Plaintiff asked how her work performance could be improved.
264. Plaintiff is told that the only thing to improve on is personal.
265. This comment highlights the discriminatory and retaliatory nature of Plaintiff's adverse actions.
266. Further Defendant GARCIA falsifies official documentation surrounding Plaintiff's appeal.
267. Specifically, Plaintiff informs Defendant GARCIA that she was physically threatened by Defendant MILLER and is in fear for her safety and thus cannot participate in the appeal meeting.
268. Defendant GARCIA fails to specify the reason Plaintiff did not participate in the appeal nor did she report Defendant MILLER for physically threatening Plaintiff.
269. After this meeting Defendant GARCIA takes no action to stop the retaliation and discrimination towards Plaintiff.
270. In fact, Defendant GARCIA, immediately following the meeting, assigns Plaintiff to work with a civilian who had previously filed multiple complaints against Plaintiff.
271. Defendant GARCIA had previously informed Plaintiff that she knew Plaintiff had done nothing wrong and that she knew the civilian had made false allegations against her.
272. In fact, Defendant GARCIA had previously referred the unhinged civilian to the NYPD's Employee Assistance Unit and Psychological Services for evaluation.

273. Defendant GARCIA assigned Plaintiff to work with this civilian in retaliation for Plaintiff's discrimination complaints and in an effort to get Plaintiff to quit.
274. Plaintiff is forced to work with the unhinged civilian.
275. Upon information and belief, it is Defendant GARCIA's intention to make the work environment so hostile for Plaintiff that she is involved in a physical altercation or has to resign due to the treatment.
276. Defendant GARCIA is aware of the retaliation and discrimination suffered by Plaintiff but has refused to intervene to stop the unlawful treatment.
277. On June 17, 2024, the NYPD's Internal Affairs Bureau publicly notified the OEEEO office that Plaintiff had filed a discrimination complaint and that they were going to interview several witnesses.
278. In Plaintiff's formal complaint she listed numerous witnesses who can attest to the discriminatory treatment towards Black employees by Defendant CHEN.
279. Plaintiff's witness list includes several black witnesses none of whom were interviewed by the Defendant CITY.
280. Despite listing the aforementioned Black witnesses, the NYPD Internal Affairs interviews Hispanic witnesses.
281. On June 26, 2024, Defendant CHEN calls a meeting in the OEEEO office but excludes Plaintiff and the two (2) investigators who were interviewed by Internal Affairs.
282. At the meeting Defendant CHEN specifically addresses Plaintiff's discrimination complaint against him to the group.
283. Defendant CHEN is angry in the meeting.

284. In the meeting Defendant CHEN, threatens the OEEO unit by telling them that he was nice previously in approving days off and treating people nicely but that would no longer be the case.
285. Defendant CHEN further tells the group that he thought they were all friends.
286. When Defendant CHEN was done threatening the other members of OEEO the meeting ended.
287. The hostile work environment worsened since then.
288. Plaintiff, to date, sits at the reception area, working out of title, awaiting her punitive transfer out of the Unit.
289. Despite being trained in discrimination and retaliation investigations the OEEO continues to discriminate and retaliate against Plaintiff.
290. To date Plaintiff has been threatened both by Defendants CHEN and MILLER.
291. Further the other team members have threatened several employees not to speak with Plaintiff or risk their own retaliation.
292. The discrimination and retaliation continues to date.
293. Plaintiff since complaining about the falsifying of her investigation, has not been able to earn overtime with the OEEO unit.
294. Plaintiff is the only employee that is not allowed to earn overtime.
295. These retaliatory tactics will not only cost Plaintiff money each year but has the potential to cost Plaintiff hundreds of thousands of dollars in lost pension benefits over the course of her lifetime.

296. Plaintiff's collective bargaining agreement allows for Plaintiff to lock in the average of her highest three (3) years on the job or her final year of service, whichever is highest, to calculate her pension benefits.
297. If the retaliation against Plaintiff continues the retaliation will significantly impact her retirement.
298. The total loss for Plaintiff due to the Defendants discrimination and retaliation is more than \$1,000,000.
299. The Defendant CITY is strictly liable for these actions and inactions pursuant to New York State Human Rights Law §8-107(13)(b).
300. Throughout this time the discriminatory and retaliatory actions of the Defendants herein has been continuous and ongoing.
301. Upon information and belief, Plaintiff is being retaliated against in an effort of the Defendants herein to justify their unlawful actions.
302. That at all times herein the Defendant CITY OF NEW YORK, knew or should have known of the discriminatory and retaliatory actions taken toward Plaintiff yet failed to intervene to prevent these unlawful actions against Plaintiff.
303. That at all times herein the Defendant City OF NEW YORK failed to properly train police officers.
304. The Defendants herein, if properly trained, would not have taken the discriminatory and retaliatory actions towards Plaintiff.
305. The Defendants herein, upon information and belief, were not subjected to any discipline as a result of their unlawful discriminatory and retaliatory actions towards Plaintiff which has caused Plaintiff to suffer further unlawful acts.

306. The Defendants herein, if properly supervised, would not have taken the discriminatory and retaliatory actions towards Plaintiff.
307. Plaintiff at all times herein was fit for duty as a Police Officer of the Defendant CITY OF NEW YORK.
308. As a result of denial of employment by the Defendants herein, Plaintiff lost substantial income in promotional opportunities, overtime, salary, and pension benefits as a result of the unlawful actions of the Defendants herein.
309. Plaintiff alleges that the actions of the defendants herein caused him to suffer severe and pervasive emotional distress as a result of that hostile environment and disparate treatment based on her race, religion, national origin, and skin color.
310. Plaintiff alleges that the defendants herein had actual knowledge of the discriminatory and retaliatory treatment of Plaintiff herein and failed to intercede to prevent the unlawful behavior.
311. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
312. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
313. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they has actual and constructive notice of the discriminatory and retaliatory conduct as described herein yet failed to exercise reasonable diligence to prevent it.

314. Plaintiff alleges defendant CITY OF NEW YORK engaged in various unlawful employment actions against Plaintiff in retaliation for her lawfully protected complaints of sexual harassment and gender discrimination.
315. Plaintiff suffered several adverse employment actions as a result of her race.
316. Plaintiff believes that the adverse employment actions were a direct result of Plaintiff's race but at the very least, these protected characteristics played a factor in the adverse employment actions taken against her.
317. Plaintiff believes that the adverse employment actions were a direct result of Plaintiff's objections to the Defendants crimes.
318. These adverse employment actions include but are no way limited to, improper discipline, punishment, transfers, highway therapy, disparate assignment of post, inaccurate performance evaluations, denial of overtime, denial of specialized units and failure to promote.
319. Plaintiff has been subjected to a hostile work environment as a result of the severe and pervasive discriminatory and retaliatory conduct as described herein.
320. The non-Black officers described herein as receiving favorable assignments, evaluations, overtime, and other benefits compared to minority officers are similarly situated to those minority officers in every way and receive these benefits on the basis of their race.
321. The Defendant knew, or should have known, that this policy and unlawful acts were ongoing and failed to properly supervise or train their employees related to prevent these unlawful acts from occurring to its employees, including Plaintiff.

322. The Defendants herein were aware that Plaintiff objected to violations of law when she informed the NYPD's Department Advocates Office that she did not sign the substantiated OEEEO case and that she objected to the fraudulent document.
323. Following Plaintiffs objections to the unlawful conduct, it became known to the Defendant CITY that Plaintiff objected to the Defendant's unlawful conduct.
324. After learning of Plaintiff's objections to the Defendants fraudulent conduct,
325. The Defendants herein took disciplinary actions against Plaintiff, which included but was not limited to her termination of employment, as a result of her disclosure of the unlawful actions of the Defendants.
326. Plaintiff would not have been disciplined if he did not disclose the unlawful actions of the Defendants.
327. The Defendants had no legitimate business reasons for the adverse actions taken against Plaintiff.

COUNT I
RACE DISCRIMINATION
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107

328. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
329. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment on the basis of her race.
330. Plaintiff performed her job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's race, created a hostile work environment by the conduct of Defendants CITY,

CHEN, MILLER, and GARCIA. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.

331. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
332. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt her credit rating, lost career, and business opportunities, suffered severe damage to her good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to her detriment in an amount to be determined at trial.
333. Plaintiff alleges Defendants CITY, CHEN, MILLER, and GARCIA, engaged in various unlawful employment actions against Plaintiff based on her race.
334. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY, CHEN, MILLER and GARCIA, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to her personal and professional reputation in an amount to be determined at trial.

COUNT II
RACE DISCRIMINATION
HOSTILE WORK ENVIRONMENT
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107

335. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
336. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to

deny employment on the basis of her race.

337. Plaintiff performed her job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's race, created a hostile work environment by the conduct of Defendants CITY, CHEN, MILLER, and GARCIA, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant Defendants CITY, CHEN, MILLER and GARCIA.
338. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
339. Defendant subjected Plaintiff to a materially adverse and hostile work environment by subjecting him, day after day, month after month, without supervisory intervention to discrimination and retaliation based her race.
340. The actions of the Defendant towards Plaintiff were severe and pervasive.
341. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt her credit rating, lost career, and business opportunities, suffered severe damage to her good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to her detriment in an amount to be determined at trial.
342. Plaintiff alleges Defendants CITY, CHEN, MILLER, and GARCIA, engaged in various unlawful employment actions against Plaintiff based on her race.
343. Plaintiff alleges that as a direct and proximate result of the unlawful employment

practices, including subjecting Plaintiff to a hostile work environment, of Defendants CITY, CHEN, MILLER, and GARCIA Individually, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to her personal and professional reputation in an amount to be determined at trial.

COUNT III
RACE DISCRIMINATION
STRICT LIABILITY IN VIOLATION OF
NEW YORK CITY ADMINISTRATIVE CODE § 8-107(13)(b)

344. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
345. Plaintiff alleges that New York City Administrative Code § 8-107 (13) (b), makes a Defendant strictly liable for the discriminatory acts of managers and supervisors against a subordinate employee, such as the Plaintiff herein.
346. Plaintiff was subjected to repeated race discrimination following the lawful complaints made by Plaintiff.
347. The Defendant was aware of the actions of managers and supervisors, including but failed to take corrective remedial action which forced Plaintiff to be subjected to future discrimination.
348. The Defendant failed to exercise reasonable diligence to prevent such discriminatory conduct.
349. Plaintiff performed her job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's race, created a hostile work environment by the conduct of Defendants CITY,

CHEN, MILLER, and GARCIA, Individually, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.

350. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
351. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt her credit rating, lost career, and business opportunities, suffered severe damage to her good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to her detriment in an amount to be determined at trial.
352. Plaintiff alleges Defendants CITY, CHEN, MILLER, and GARCIA, engaged in various unlawful employment actions against Plaintiff based on her race.
353. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
354. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they held a supervisory position to Plaintiff wherein, they exercised managerial and supervisory responsibility.
355. The Defendant CITY OF NEW YORK is vicariously liable for the actions of their employees as described herein as they has actual and constructive notice of the discriminatory and retaliatory conduct as described herein yet failed to exercise reasonable diligence to prevent it.

356. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY, CHEN, MILLER and GARCIA, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to her personal and professional reputation in an amount to be determined at trial.
357. As a result of Defendant's willful actions, they are strictly liable to Plaintiff for their actions.

COUNT IV
RETALIATION
IN VIOLATION OF NEW YORK CITY
ADMINISTRATIVE CODE § 8-107
AGAINST ALL DEFENDANTS

358. Plaintiff re-alleges all paragraphs herein and incorporates them by reference in Count IV of this complaint.
359. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment in retaliation for Plaintiff engaging in protected activity.
360. Plaintiff engaged in protected activity when she complained of sex, and gender discrimination related to the sexual harassment.
361. Plaintiff was retaliated against by the Defendants CITY, CHEN, MILLER and GARCIA, as a result of her engagement in protected activity.
362. Defendants' actions were taken under circumstances giving rise to an inference of retaliation.
363. The direct and proximate cause of Defendants' recklessness and negligence, Plaintiff, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt her credit rating, lost career, and business opportunities, suffered

severe damage to her good name and reputation, and endured severe emotional pain and trauma, all to her detriment.

364. Plaintiff alleges Defendants CITY, CHEN, MILLER and GARCIA, engaged in various unlawful employment actions against Plaintiff in retaliation for Plaintiff's lawfully protected complaints.

365. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CITY OF NEW YORK, CHEN, MILLER and GARCIA, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to her personal and professional reputation.

COUNT V
RETALIATION
STRICT LIABILITY IN VIOLATION OF
NEW YORK CITY ADMINISTRATIVE CODE § 8-107(13)(b)
AGAINST ALL DEFENDANTS

366. Plaintiff re-alleges all paragraphs contained herein and incorporates them by reference of Count V of this complaint.

367. Plaintiff alleges that New York City Administrative Code § 8-107 (13) (b), makes a Defendant strictly liable for the acts of managers and supervisors against a subordinate employee, such as the Plaintiff herein.

368. Plaintiff was subjected to repeated retaliatory acts following the lawful complaints made by Plaintiff regarding sex and gender discrimination.

369. The Defendant Defendants CITY, was aware of the actions of managers and supervisors, including Defendant CHEN, MILLER and GARCIA. The Defendants failed to exercise reasonable diligence to prevent such retaliatory conduct.

370. Plaintiff performed her job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations and numerous commendations. Nevertheless, Defendants denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's gender, sexual harassment, and created a hostile work environment by the conduct of Defendants CHEN, MILLER and GARCIA, and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY.
371. Defendants' actions were taken under circumstances giving rise to an inference of retaliation.
372. The direct and proximate cause of Defendants' recklessness and negligence, Plaintiff suffered lost past and future wages, lost other valuable benefits and emoluments of employment, lost career, and business opportunities, suffered severe damage to her good name and reputation, and endured severe emotional pain and trauma, all to her detriment.
373. Plaintiff alleges Defendants CHEN, MILLER and GARCIA, engaged in various unlawful employment actions against Plaintiff in retaliation for her lawfully protected complaints of sex and gender discrimination.
374. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants CHEN, MILLER and GARCIA, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to her personal and professional reputation.
375. As a result of Defendants willful actions, they are strictly liable to Plaintiff for their actions.

COUNT VI**VIOLATION OF New York State Civil Service Law §75**
(AGAINST DEFENDANT CITY)

376. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.
377. The Defendants retaliated against Plaintiff for engaging in protected activity in violation of New York State Civil Service Law §75.
378. Specifically, Plaintiff complained about protected activity when she complained about the illegal actions of the several co-workers in her unit who fraudulent altered her documents and findings.
379. In retaliation for those complaints, Plaintiff was retaliated against.
380. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

COUNT VII**NEW YORK CITY ADMINISTRATIVE CODE §8-502**

381. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to this Count.
382. By reason thereof, Defendants CITY OF NEW YORK has violated New York City Administrative Code §8-502(a), and Plaintiff has been damaged in an amount to be determined at trial.

JURY TRIAL

PRAYER FOR RELIEF

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VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

I, the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm.

That I am the attorney of record for the plaintiff in the within matter and make this affirmation in accordance with CPLR 3020. I have read the within VERIFIED COMPLAINT and know the contents thereof to be true to your affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon information and belief. Your affirmant bases her belief regarding those matters upon the contents of the file and conversation with witnesses and the claimant.

This verification is made by your affirmant and not by the claimant for the following reason: The claimants resides in a different County than where your affirmant maintains an office.

Dated: New York, New York
August 1, 2024

s/
JOHN SCOLA